



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JAN 24 2001

DOT-E 12594

EXPIRATION DATE: April 30, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Fire Spec Systems, Inc.
Carmel, CA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of gasoline in a non-DOT specification steel drum with a pump installed mounted in a helitorch frame. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.202(c) in that a non-specification steel drum is not authorized, except as specified herein.
5. BASIS: This emergency exemption is based on the application of Fire Spec Systems Inc dated December 8, 2000, and supplemental information dated January 3, 2001, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.

JAN 24 2001

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Gasoline	3	UN1203	II

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Packaging prescribed is a 55 gallon non-DOT specification steel drum with dry break fittings and a pump installed in lieu of a bung closure. The externally mounted pump must be an explosion proof diaphragm fuel transfer pump manufactured by the Tuthill Corporation. The drum and attached pump must be securely mounted in a helitorch frame, as shown on the drawings on file with the Office of Hazardous Material Exemptions and Approvals (OHMEA).

(2) Each drum must meet the performance requirements for UN1A2 steel drums for PG II liquids (see § 178.504 and §§ 178.601-608) prior to installation of the dry break fittings and the fuel transfer pump. If the drums are marked UN1A2 prior to installation of the dry break fittings and fuel transfer pump, the marking must be obliterated or covered prior to use.

b. OPERATIONAL CONTROLS -

(1) The fuel transfer pump must be disconnected from its power source during transportation.

(2) The helitorch frame may not be towed behind a motor vehicle.

(3) No more than two helitorch frames may be transported on one vehicle.

JAN 24 2001

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The helitorch frame must be plainly and durably marked "DOT-E 12594" as required by § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

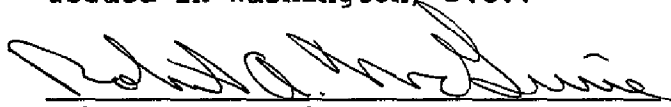
No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

JAN 24 2001

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

JAN 24 2001


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: PTolson